

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

May 22, 2023

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich (via Zoom), Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Absent: Bryan Cook. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Roybal moved to approve, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body present.

Expression of Appreciation of the 2022-2023 Mayor’s Youth Council and State of the Youth Address was made.

[CA] Minutes from Regular Meeting of the Governing Body on May 8, 2023. Motion (per Consent Agenda) carried.

ORDINANCE – 2nd READING – Ordinance appropriating moneys for the City of Cheyenne, Wyoming for the various purposes in conducting the municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation, all for the Fiscal Year beginning July 1, 2023 and ending June 30, 2024. Reporting for Committee of the Whole, Mr. Johnson moved to approve on second reading, seconded by Mr. Segrave. Mr. Johnson moved to amend to decrease the Capital Improvement Expenses line item in the Mayor’s Department General Fund expenditure by \$105,000.00 and increase the Capital Improvement Expenses line item in the Miscellaneous Department’s General Fund expenditure budget by the same amount and to increase the Special Distribution from the State line item in the Intergovernmental General Fund revenue category by \$23,000.00 and the Capital Improvement Expenses line item in the Miscellaneous Department’s General Fund expenditure budget by the same amount, seconded by Mr. Roybal. Motion to amend carried. Voting “yes” – all members of the governing body present. Mr. Johnson moved to amend to increase the Special Distribution from the State line item in the Intergovernmental General Fund revenue category by \$50,000.00 and increase the Nuisance Abatement line item in the Compliance Department’s General Fund expenditure budget in the same amount, seconded by Dr. Rinne. Motion to amend carried. Voting “yes” – all members of the governing body present. Mr. Johnson moved to amend to increase the Special Distribution from the State line item in the Intergovernmental General Fund revenue category by \$127,280.00 and increase Parks Projects line item in the Miscellaneous Department’s General Fund expenditure budget in the same amount,

seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. Mr. Johnson moved to amend to decrease the Miscellaneous Department “Transfer to Reserves” line item by \$60,000.00 and increase the City Council Department as follows: \$20,000.00 in the Ward 1 Contingency line item, \$20,000.00 in the Ward 2 Contingency line item, and \$20,000.00 in the Ward 3 Contingency line item, seconded by Mr. Laybourn. Mr. Johnson moved to amend the amendment to increase the “Transfer to Reserves” line item by \$124,445.00 for a total of \$184,445.00 and increase the City Council Department as follows: \$41,485.00 in Ward 1 Contingency line item, \$41,485.00 in the Ward 2 Contingency line item, and \$41,485.00 in the Ward 3 Contingency line item for a total in each Ward Contingency Fund of \$61,485.00, seconded by Mr. Laybourn. Motion to amend the amendment failed due to a tie vote. Voting “yes” – Dr. Aldrich, Mr. Esquibel, Mr. Laybourn and Mr. White. Voting “no” – Mr. Johnson, Dr. Rinne, Mr. Roybal and Mr. Segrave. Motion to amend carried. Voting “yes” – all members of the governing body present with the exception of Dr. Aldrich who voted “no”. Main motion as amended (amended four times) carried. Voting “yes” – all members of the governing body present. The following is a summary of the proposed budget including aforementioned amendments: General Fund, \$66,215,278; Weed and Pest, \$710,000; Youth Alternatives Grants, \$930,480; Recreation Programs, \$2,099,698, Surface Water Management, \$6,028,882; Community Development Block Grant, \$548,667; Law Enforcement Grants, \$211,976; Miscellaneous Federal Grants, \$929,612; Transportation Planning, \$1,078,409; Transit, \$3,560,683; Juvenile Justice, \$170,745; Special Friends, \$58,325; Development Impact Fees, \$1,028,200; One Percent Sales Tax 2019-22, \$13,089,895; Specific Purpose Option Tax, \$574,456; Youth Activities, \$19,207; Golf Facilities, \$374,300; Fleet Maintenance, \$6,389,579; Solid Waste Management, \$19,985,856; Civic Center, \$2,613,314; Ice & Events Center, \$1,057,783; Perpetual Care, \$27,000; Total City, \$127,502,066; Water Enterprise, \$28,772,400; Sewer Enterprise, \$15,372,000; Total Appropriation, \$171,846,746.

ORDINANCE –2nd READING – Ordinance approving and establishing revised water and sewer rates, tap and system development fees, administrative fees, service charges and penalties, and septic and commercial waste dump rates, as recommended by the Board of Public Utilities. Reporting for Finance Committee, Mr. White moved to approve on second reading, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body present. Comment was made by the following member of the governing body: Mr. Esquibel.

ORDINANCE –2nd READING – Ordinance amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MR Medium-Density Residential to MUB Mixed-Use Business Emphasis for land located at Lot 29, Block 1, Eastridge. Reporting for Public Services Committee, Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. Public comment was made by: Shane Hansen, Steil Surveying Services. Comments were made by the following members of the governing body: Dr. Rinne and Mr. Segrave.

ORDINANCE –2nd READING – Amending the Major Street Plan Official Map 2017, by updating the entire Major Street Plan Official Map with newly platted and built roads and with the most recent Master Transportation Plan (Connect 2045) and other recently adopted Master Transportation Amendments. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE –1st READING – Amending Section 5.12.030, Licenses and Permits-Types, of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the Municipal Code of the City of Cheyenne, Wyoming – referred to Finance Committee. (Sponsor – Mr. White)

ORDINANCE –1st READING – Creating Chapter 2.96, Ethical Obligations of Public Officials, Public Members and City Employees, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, specifying the ethical duties and obligations of Public Officials, Public Members and Employees of the City of Cheyenne – referred to Public Services Committee. (Sponsor – Dr. Aldrich)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Stadium View Addition, 4th Filing, a replat of Lots 8 and 9, Block 4, Stadium View Addition, 3rd Filing, City of Cheyenne, Laramie County, Wyoming (located northeast of the intersection of Bevans Street and Grove Drive). Motion (per Consent Agenda) carried. (#6325)

[CA] RESOLUTION – Approving the budget of the Cheyenne Regional Airport Board for the Fiscal Year beginning July 1, 2023 and ending June 30, 2024. Motion (per Consent Agenda) carried. (#6326)

[CA] RESOLUTION – Authorizing the City of Cheyenne to join with other political subdivisions of the State of Wyoming as a participant in the Wyoming Cooperative Liquid Assets Securities System (Wyoming CLASS) to pool funds for investment. Motion (per Consent Agenda) carried. (#6327)

[CA] RESOLUTION – Supporting the Cheyenne Regional Airport Board in the application for and acceptance of federal assistance from the Federal Aviation Administration under the Bipartisan Infrastructure Law to assist in constructing a passenger boarding bridge connected to the passenger terminal. Motion (per Consent Agenda) carried. (#6328)

[CA] RESOLUTION – Approving the budget of the Cheyenne Downtown Development Authority for the Fiscal Year beginning July 1, 2023 and ending June 30, 2024 – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Approving water services, by outside user agreement, for properties to be known as Ironhorse 3rd Filing, Laramie County, Wyoming generally located southeast of West Riding Club Road and Hynds Boulevard – referred to Public Services Committee. (Sponsor – Mr. Cook)

RESOLUTION – Approving sanitary sewer service, by outside user agreement, for Myers, Austin et al, for the property at 3730 Rawlins Street, Laramie County, Wyoming (located northwest of the intersection of Rawlins Street and McCann Avenue) – referred to Public Services Committee (Sponsor – Mr. Cook). Mayor Collins recessed the meeting at 6:46 p.m. in order to hold a Special Meeting of the Public Services Committee to consider the resolution. Mayor Collins reconvened the City Council meeting at 6:54 p.m. Dr. Rinne moved to adopt, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#6329)

Pipeline Easement Agreement between the City of Cheyenne and Samson Exploration, LLC for installation and maintenance of pipelines on City owned property (Revenue to the City) (Postponed from May 8, 2023). Mr. White moved to approve, seconded by Mr. Esquibel. Mr. White moved to postpone to June 12, 2023, seconded by Mr. Esquibel. Motion to postpone carried. Voting “yes” – all members of the governing body present.

[CA] Memorandum of Understanding between the City of Cheyenne, Cheyenne Regional Medical Center, and American Medical Response to establish the terms and conditions under which the parties will manage mutual care as it relates to community paramedicine and non-emergency transport. Motion (per Consent Agenda) carried. (#7764)

[CA] Professional Services Agreement between the City of Cheyenne and Terracon Consultants, Inc. for Landfill Leachate System Design, Modification and Maintenance Contract (Solid Waste Fund) -- referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7531 between the City of Cheyenne and Waste Management of Colorado, Inc. for the Recycling Services Project to extend the agreement to April 15, 2024 (Solid Waste Fund) – referred to Finance Committee.

[CA] Renewal of Contract #7535 between the City of Cheyenne and Blue Cross Blue Shield of Wyoming for Third Party Administrator Services and Group Health Insurance benefits for City employees (Self Insurance Fund) – referred to Finance Committee.

[CA] Renewal of Contract #7536 between the City of Cheyenne and Granular Insurance Company for Stop Loss Insurance for City employees (Self Insurance Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-22-23 for furnishing Bituminous Asphalt Hot Mix, Tack Oil, and Cold Mix on an annual basis, for the City of Cheyenne, Street & Alley Division (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (accepted bid from JTL Group Inc. d/b/a Knife River, Cheyenne, in an amount not to exceed \$439,625.00).

[CA] Consideration of Bid #E-23-23 for furnishing Aggregates on an annual basis for the City of Cheyenne, Street & Alley Division (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (accepted bid from JTL Group Inc. d/b/a Knife River, Cheyenne, in an amount not to exceed \$40,000.00).

[CA] Consideration of Bid #S-20-23 for an Agreement between the City of Cheyenne and Reiman Corp. for the Greater Cheyenne Greenway, Lions Park Greenway Spot Repair (2017 & 2021 Specific Purpose Option Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$58,282.50). (#7765)

[CA] Consideration to Purchase between the City of Cheyenne and Stryker for a Lifepak 15 Monitor/Defibrillator for the Cheyenne Fire Rescue Department (Wyoming Department of Health, Community Emergency Medical Services Grant). Motion (per Consent Agenda) carried (in an amount not to exceed \$43,127.24).

[CA] Consideration to Purchase between the City of Cheyenne and Power Equipment Company for the repair of a Paving Machine for the Street and Alley Department (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$51,266.06).

[CA] Consideration of Bid #S-13-23 for an Agreement between the City of Cheyenne and Z & Z Sealcoating, Inc. for the 2023 Crack Seal #1 Project (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-19-23 for one (1) palletized paint striper unit for the City of Cheyenne Traffic Division (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-24-23 for four (4) new trucks for the City of Cheyenne Landfill, Aquatics, and Facilities Divisions (2019-2022 Optional 1% Sales Tax Fund, Solid Waste Fund, Insurance Claims and General Fund) – referred to Finance Committee.

[CA] Consideration to Purchase between the City of Cheyenne and Xerographic Equipment Systems, Inc. (XESI) to cancel existing copier leases and to purchase eighteen (18) new copiers (General Fund) – referred to Finance Committee.

[CA] Restaurant liquor license application filed with the City Clerk's Office for Stella Polare LLC d/b/a L'Osteria Mondello, 1507 Stillwater Ave. Ste. D, Cheyenne, WY. Motion (per Consent Agenda) carried.

[CA] Request to extend the time period in which Westby Edge LLC has to become operational for an additional year for their bar and grill and microbrewery licenses, located at 714 W. 20th St., Cheyenne, WY – referred to Finance Committee.

Reappointment of John Edwards to the Board of Public Utilities. Mr. Segrave moved to approve, seconded by Dr. Rinne. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mayor Collins who did not vote (mayoral appointment).

Appointments of Merle Smith to the Public Transit Board; and Heather Foster and Anthony Ortiz to the Tourism Promotion Joint Powers Board. Mr. Johnson moved to approve, seconded by Mr. White. Motion carried. Voting "yes" – all members of the governing body present with the exception of Mayor Collins who did not vote (mayoral appointments).

There were no comments made on the Voucher Report as presented.

There were no comments made on the Revenue Report as presented.

Announcement was made of a Public Hearing to be held June 12, 2023 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for a retail liquor license application filed with the City Clerk's Office for Cheyenne Regional Airport Board d/b/a Cloud Nine Restaurant & Bar, 300 East 8th Ave., Cheyenne, WY.

Announcement was made of a Public Hearing to be held June 12, 2023 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for about 2.06 acres of land located northwest of the intersection of Thomas Road and Ridge Road, Laramie County, Wyoming.

Announcement was made of a Public Hearing to be held June 12, 2023 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for about 1.69 acres of land located at 4512 Rawlins Street, Laramie County, Wyoming (located south of Rawlins Street east of Cleveland Ave.).

The following members of the governing body made comments under other business: Mr. Johnson and Mr. White.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:01 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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